

§ 10. When a decree shall be rendered for a divorce, it shall be the duty of such court, to make out, at the request of the party in whose favor the decree is rendered, a complete copy of the record and evidence in said suit, which shall be certified by said clerk, and by him sealed up and directed to the speaker of the house of representatives of the state of Alabama, and endorsed thereon, that it is a decree for a divorce; which decree and proceedings shall be delivered to said speaker by the party, or his or her attorney, applying for the same, within and during the ensuing session of the legislature.

Ib. Sec. 8.
Copy of proceedings to be delivered to speaker of the house of representatives.

§ 11. It shall be the duty of the speaker of the house of representatives, in the presence of the members of the house, to open such record, and cause the same to be read and proceeded on, according to the constitution of the state of Alabama.

Ib. Sec. 9.
Speaker's duty.

§ 12. If it appear to the court, that the adultery complained of is occasioned by collusion of the parties, and done with intention to procure a divorce, then no divorce shall be decreed.

1803—(5)
Sec. 5.
Collusive adultery insufficient.

§ 13. If any persons cohabit together, after the divorce for the cause of adultery, such persons, so offending, shall be liable to all the pains and penalties, provided by the laws then existing against adultery.

Ib. Sec. 9.
Penalty for cohabiting after divorce for adultery.

§ 14. If it shall appear, that the complainant has been guilty of adultery, and has admitted the defendant into conjugal society or embraces, after he or she knew of the criminal fact, or that the said plaintiff (if the husband) allowed of his wife's prostitution, it shall be a bar against a divorce for such previous misconduct.

1824—(15)
Sec. 2.
Bar against divorce.

§ 15. In all cases, where both parties shall be guilty of adultery, it shall be a bar to a divorce.

Ib. Sec. 3.
Mutual adultery.

§ 16. In order to prevent collusion between the parties, in no case shall the confession of them, or either of them, be taken or received as evidence in any case of divorce.

Ib. Sec. 4.
Confessions not evidence

§ 17. In no case of divorce shall the party, against whom such divorce may be granted, or who may have been guilty of any of the offences upon which such divorce may have been granted, be allowed to marry again; and in case the said party shall marry again, such marriage is hereby declared null and void; and the party, so marrying again, shall be liable to such penalties as are prescribed for the crime of adultery.

Ib. Sec. 5.
Subsequent marriage of the party in fault, void.

§ 18. No person shall be permitted to commence a suit in chancery for a divorce, until he or she shall have been an inhabitant of this state, at least three years immediately preceding.

Ib. Sec. 6.
Complainant must have resided three years in the state.

§ 19. Divorce from bed and board may be granted for extreme cruelty in either of the parties, on the application of the party aggrieved, by the same proceedings in the chancery court of the county, in which the complainant may reside, as are, or may be required by law to be had, on bill, praying divorce from the bonds of matrimony, and the divorce of such chancery court shall be final.

Ib. Sec. 7.
Divorces from bed and board.

§ 20. The courts of chancery shall have power, in all cases of separation between man and wife, and neither party shall obtain a divorce, to give the custody and education of the children to either the father or mother, as to them may seem right and proper, having regard to the prudence and ability of the parents, and the age and sex of the child or children.

1833—(1)
Sec. 1.
Chancery courts, in cases of separation between man & wife, may assign children to either.

§ 21. The courts of chancery shall have power, in cases of the separation of parents, to permit either the mother or father to have the care and education of the children, or any of them, as to said courts may seem just and proper; to be determined and decided on

1833—(15)
Sec. 1.